

Afzal v. State of U.P. & 3 Others

Allahabad High Court · Single Judge · 19 January 2018 · Writ - C No. 22694 of 2015 · **Electricity department (respondent no.3) directed to look into Clause 4.4 of the U.P. Electricity Supply Code, 2005 and, if feasible, provide a connection; Ombudsman order dated 03.12.2014 shall not come in the way; listed after one month**

HEADNOTE

Where a tenant's application for a fresh electricity connection was refused, the Consumer Grievance Redressal Forum directed the connection, and the Ombudsman set that order aside leaving the tenant to the civil court, the High Court — recording the licensee's statement that it should have no objection if the tenant complied with the U.P. Electricity Supply Code, 2005 — directed the electricity department to look into Clause 4.4 of the Code and, if feasible, provide the connection. The Ombudsman order dated 3 December 2014 shall not come in the way. The writ was listed after one month. The Court did not itself grant the connection, did not quash the Ombudsman order, and did not decide the landlord's refusal of a no-objection certificate on the merits.

FACTUAL SUMMARY

Afzal, a tenant of Shop No. 173, Chauki Chamaran Main Chauraha, Daurala Road, Kasba Sardhana, District Meerut, applied for a fresh electricity connection. The electricity department refused. The Electricity Consumer Grievance Redressal Forum, Meerut, on 28 August 2014 directed the department to give him a fresh connection. The Ombudsman at Lucknow set aside that order (the impugned order dated 3 December 2014) and left him free to obtain an order from the Civil Judge (Junior Division), Sardhana. He filed Writ-C No. 22694 of 2015.

On 2 January 2018 the Court recorded the controversy as whether a connection could be granted when the landlord had refused a no-objection certificate; the petitioner relied on Clause 4.4 of the U.P. Electricity Supply Code, 2005 and the indemnity form. On 19 January 2018 he again invoked Clause 4.4 and Clause 4.4(a)(i), and relied on *Devendra Sharma v. State of U.P.* (Writ Petition No. 38285 of 2011, decided 14 July 2011). Counsel for the Corporation submitted that the department should have no objection if the petitioner complied with the 2005 Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

licensee to look into Clause 4.4 and provide a tenant's fresh connection if feasible; Ombudsman order not a bar

QUESTION

Where a tenant seeks a fresh connection after the landlord has refused a no-objection certificate, and the Ombudsman has set aside a CGRF direction to connect, what order follows on the licensee's statement that it should have no objection if the tenant complies with the Code?

HOLDING

The electricity department (respondent no.3) is to look into Clause 4.4 of the U.P. Electricity Supply Code, 2005 and, if it is feasible, provide the connection. The petitioner, a tenant, had relied on Clause 4.4 and Clause 4.4(a)(i) for an indemnity-bond path. Counsel for the Corporation submitted that the department should have no objection if the petitioner complied with the 2005 Code. The Ombudsman order dated 03.12.2014 shall not come in the way of the parties. The writ was listed after one month; the Court did not itself mandamus grant of supply. ¶ 4

FLAG Source PDF compiles listing orders of 22.4.2015 (Sunita Agarwal, J.), 8.8.2017 (Mahesh Chandra Tripathi, J.), 2.1.2018 and 12.1.2018 (Siddhartha Varma, J.) with the operative unnumbered order of 19.1.2018. Pins are logical paragraphs of that last order. The 2.1.2018 listing recorded the controversy as landlord NOC refusal versus a Clause 4.4 indemnity form. Petitioner also invoked Clause 4.4(a)(i); the operative direction is to 'para 4.4' only. The Court did not cite Annexure 4.2 or Clause 4.4(vi).

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents On the licensee's statement that it should have no objection if the petitioner complied with the 2005 Code, the Court directed the electricity department to look into Clause 4.4 and, if feasible, provide the connection, without granting supply on the writ. ¶ 3-4

clause-4.4-occupant-connection-on-indemnity-bond The petitioner, a tenant whose landlord had refused a no-objection certificate, relied on Clause 4.4 and Clause 4.4(a)(i) for an indemnity-bond path. The Court directed the department to look into Clause 4.4 rather than requiring the landlord's consent as a condition of considering the application. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CONNECTION ITSELF MUST BE GRANTED

Left to the electricity department: look into Clause 4.4 and provide the connection if feasible. The writ was listed after one month. ¶ 4

NOT DECIDED — MERITS OF THE LANDLORD'S REFUSAL OF A NO-OBJECTION CERTIFICATE / THE TENANCY CONTROVERSY

Identified as the controversy on 2.1.2018; not decided on 19.1.2018. ¶ 4

NOT DECIDED — VALIDITY OF THE OMBUDSMAN ORDER DATED 03.12.2014, AND WHETHER THE PETITIONER MUST PROCEED BEFORE THE CIVIL JUDGE (J.D.), SARDHANA

The Ombudsman had set aside the CGRF direction of 28.08.2014 and left the petitioner to the civil court. The High Court did not quash that order; it directed that it shall not come in the way of the parties. ¶ 1, 4

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Devendra Sharma v. State of U.P. Thru Secy. And Others</i> Writ Petition No. 38285 of 2011 (14.07.2011) Allahabad High Court	Cited by the petitioner for the submission that the electricity department should have no objection to a connection if the tenant complies with clause 4.4(a)(i) of the 2005 Code. The Court recorded the citation but did not apply or distinguish it.		Petitioner	Relied on